IN THE NATIONAL COMPANY LAW TRIBUNAL
CHANDIGARH (COURT – II)
(Through Hybrid Mode)

Item No. 1
(Supplementary List)

CP (CAA) No. 37/Chd/Hry/2024
(2nd Motion)

IN THE MATTER OF SCHEME OF AMALGAMATION OF:

1. **Vivekanada Social Foundation**
(CIN: U93000PB0211NPL034806)
Registered office: Gyan Peeth Sekha Road,
Barnala, Punjab, India- 148101
PAN: AADCV5806B
E-mail: vivekanandasocialfoundation@yahoo.com
...Transferor Company 1 / Petitioner Company 1

And

2. **League of Artisans**
(CIN: U85300CH2008NPL031259)
Registered office: SCO 20-21, Sector 9,
Chandigarh, India- 160009
PAN: AACCL0749A
E-mail: corp@tridentindia.com
....Transferor Company2 /Petitioner Company 2

With

3. **Trident Institute of Social Sciences**
(CIN: U93000PB2011NPL035424)
Registered Office: Trident Group, Sangrur,
Sanghera, Punjab, India 148101
PAN:AAECT0033F
E-mail: tg.cs@tridentindia.com
…Transferee Company / Petitioner Company 3

Under Section: 230-232, CA 2013

Order delivered on 06.09.2024

CORAM:
SHRI. UMESH KUMAR SHUKLA, HON'BLE MEMBER (T)
SHRI. HARNAM SINGH THAKUR, HON'BLE MEMBER (J)

PRESENT:
For the Petitioner : Mr. Shubham Gupta, Advocate.

ORDER

This is a joint second motion company petition filed by the Petitioner-Companies, namely; Vivekananda Social Foundation (Transferor Company 1), League of Artisans (Transferor Company 2), Trident Institute of Social Sciences (Transferee Company) and their respective shareholders and creditors in respect of sanction of the Scheme of Amalgamation between Petitioner Companies ("Scheme") under Sections 230-232 of Companies Act, 2013 (the Act) read with Companies (Compromises, Arrangements and Amalgamations) Rules, 2016 (for Brevity "Rules").

2. In its petition, the petitioner companies have prayed for directions for issuance of notice to the statutory authorities, regulators including the sectoral regulators and publication of notice inviting the objections of the general public regarding the proposed scheme of arrangement.

3. The first motion application seeking directions for dispensing/ convening the meetings of the Equity Shareholders, Secured and Unsecured Creditors of the Petitioner Companies was filed before this Tribunal vide Company Application No. CA (CAA) No.26/Chd/Pb/2024 and based on such application, necessary directions were issued by this Tribunal vide its Order dated 30.08.2024. Vide above Order, the meetings of the Equity Shareholders of all the petitioner Companies were dispensed with keeping in view the shareholding and ownership pattern and the fact that all the equity shareholders of the Applicant Companies have consented to the proposed scheme of amalgamation by way of affidavit. Both the petitioner companies have nil Preference shareholders, secured and unsecured creditors, hence the convening the meetings for the same were also dispensed with.

4. The notice of hearing will be published in newspapers having wide circulation in Punjab, where the registered Office of the Petitioner Companies are presently situated namely “Business Standard” (English, Punjab Edition), and “Ajit” (Punjabi) not less than 10 days before the next date fixed for hearing. The Petitioner Companies shall also publish the notice on its website, if any.

5. In addition to the above public notice, the Petitioner Companies shall serve the notice of the petition on the following Authorities namely, (i) Central Government through the Regional Director (Northern Region), Ministry of Corporate Affairs, New Delhi (ii) Registrar of Companies Punjab and Chandigarh; (iii) the Official Liquidator (attached to Punjab and Haryana High Court); (iv) Income Tax Authorities, within whose jurisdiction the respective Petitioner Companies are assessed by disclosing the PAN of the Petitioner Companies and (v) to such other Sectoral Regulator(s) governing the business of the Petitioner Companies, if any, stating that report on the same, if any, shall be sent to this Tribunal within a period of 30 days from the date of receipt of such notice and copy of such report shall be simultaneously sent to the Petitioner Companies, failing which it shall be presumed that they have no objection to the proposed Scheme.

6. The petitioner companies shall at least 7 days before the date of hearing of the petition file an affidavit of service regarding newspaper publication with newspaper clippings as well as service of notices on the authorities specified above.

7. Objections, if any, to the ‘Scheme’ contemplated by the authorities to whom notice has been given may be filed on or before the date of hearing fixed herein, failing which it will be considered that there is no objection to the approval of the ‘Scheme’ on the part of the authorities and this Tribunal will proceed in the matter, subject to other conditions being satisfied as may be applicable under the Companies Act, 2013 and

relevant rules framed thereunder. The petitioner companies shall also file an affidavit stating the objections received from public pursuant to publication of notice of hearing in the newspapers.

8. The next date of hearing of the petition shall be on 08.11.2024 for the consideration of the approval of the scheme as contemplated between the petitioner companies.

9. The Registry shall also report before the date fixed as to whether any objection has been received to the proposed 'Scheme'.

10. Let a copy of the order be served to the parties.

Sd/-
(UMESH KUMAR SHUKLA)
HON'BLE MEMBER (T)

Sd/-
(HARNAM SINGH THAKUR)
HON'BLE MEMBER (J)

September 06, 2024
Mukta